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BEFORE THE INDEPENDENT EXPERT INQUIRY PANEL

IN THE MATTER OF THE ARMED CONFLICT IN THE MIDDLE EAST (COMMENCING FEBRUARY 28, 2026)

DOCKET NO.: PFPJ-2026-IR-001

EXPERT JUDICIAL DETERMINATION & COMPREHENSIVE LEGAL ASSESSMENT DOSSIER

CONCERNING THE KINETIC MISSILE STRIKES ON THE SHAJAREH TAYYEBEH GIRLS' ELEMENTARY SCHOOL IN MINAB, IRAN (FEBRUARY 28, 2026)

> ***Convening & Submitting Authority:*** *People for Peace & Justice ry (PFPJ ry) — Helsinki, Finland (Finnish Business Identity Code:* `3616815-5` *)*

> ***Institutional Character:*** *Independent International Human Rights Association Incorporated under the Finnish Associations Act (Yhdistyslaki 503/1989)*

> ***Attributed State & Operating Commands:*** *The United States of America (United States Central Command / United States Navy Carrier Strike Group Three / Defense Intelligence Agency)*

> ***Structural & Evaluative Framework:*** *Modeled upon the Jurisprudence and Canonical Final Judgment Architecture of the International Criminal Tribunal for the former Yugoslavia (ICTY) and the International Criminal Tribunal for Rwanda (ICTR)*

> ***Principal Comparative Jurisprudential Benchmarks:*** *ICTY Office of the Prosecutor (OTP) Evaluative Framework for Peacetime Targeting Failures (Belgrade Chinese Embassy Precedent, ¶¶ 80–85); Middle East Watch / Human Rights Watch Targeting Inquiry (Al-Amiriyah Bomb Shelter Massacre Precedent, 1991); European Court of Human Rights Canonical Aerial Bombardment Landmarks (Isayeva v. Russia, App. 57950/00; Isayeva, Yusupova and Bazayeva v. Russia, App. 57947/00)*

> ***Principal Governing Norms:*** *Common Article 2, Geneva Conventions of 1949; Customary International Humanitarian Law (Additional Protocol I); UN Convention on the Rights of the Child (Arts. 6, 28, 38); Safe Schools Declaration; ILC Articles on Responsibility of States for Internationally Wrongful Acts (ARSIWA)*

> ***Judicial & Inter-State Destinations:*** *United Nations Human Rights Council & Special Procedures; International Court of Justice (State Responsibility); UN Committee on the Rights of the Child; Contingent European Universal Jurisdiction Dockets (Office of the Prosecutor General of Finland; Federal Public Prosecutor General of Germany)*

DRAFT — PRIVATELY SHARED FOR F

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TABLE OF CONTENTS

- CHAPTER I: PROCEDURAL BACKGROUND, MANDATE & EXECUTIVE SUMMARY
- 1.1 Institutional Mandate and Review Authority
- 1.2 Procedural History and Evidentiary Ingestion
- 1.3 Executive Summary of Determinations
- 1.4 Comparative Jurisprudential Framework: Title-by-Title Precedential Integration (*The Isayeva & Al-Amiriyah Benchmarks*)
- CHAPTER II: EVIDENTIARY PRINCIPLES, ADMISSIBILITY & STANDARD OF PROOF
- 2.1 Standard of Proof ("Reasonable Grounds to Believe" Standard)
- 2.2 Admissibility Principles (The ICTY Rule 89(C) Probative Standard)
- 2.3 Evaluation of Digital Open Source Telemetry (Berkeley Protocol)
- 2.4 Evidentiary Weight of Official State Admissions & Defense Disclosures
- 2.5 Formal Master Exhibit Inventory & Chain of Custody Registry
- CHAPTER III: GENERAL REQUIREMENTS & LEGAL QUALIFICATION OF THE CONFLICT SITUATION
- 3.1 Threshold Criteria for an Armed Conflict (The Tadić Principle)
- 3.2 Factual Establishment of the Existence of Armed Conflict
- 3.3 Qualification as an International Armed Conflict (IAC under Common Article 2 GC)
- 3.4 Applicable Legal Framework Triggered by IAC Classification
- 3.5 The Nexus Requirement: Temporal, Geographic & Operational Connection
- 3.6 Protected Status of Civilian Population and Educational Sanctuaries
- 3.7 The Absolute Presumption of Civilian Status in Case of Doubt (AP I Art. 52(3))
- CHAPTER IV: FACTUAL FINDINGS CONCERNING THE INCIDENT OF FEBRUARY 28, 2026
- 4.1 Geographical Demarcation, Cadastral Identity & Physical Architecture of the School
- 4.2 Historical Status, Municipal Conversion & The 2016 Concrete Partition Wall
- 4.3 Operational Chronology: The Academic Session of February 28, 2026
- 4.4 The Strike Sequence & Ballistic Impact Dynamics: The Triple-Tap Salvo
- 4.5 The Adversarial Positions: Military Nomination Claims vs. Verified Ground Truth
- 4.6 Forensic Casualty Census, Demographic Matrix & Pathological Trauma
- 4.7 Eyewitness, Survivor & First-Responder Testimonial Evidence
- CHAPTER V: TECHNICAL WEAPONS FORENSICS, TRAJECTORY TELEMETRY & BALLISTIC PERFORMANCE
- 5.1 Munition Identification & Debris Metallurgy
- 5.2 Warhead Blast Mechanics & Destructive Overpressure Propagation
- 5.3 Force Allocation & Launch Platform Attribution (USS Abraham Lincoln CSG)
- 5.4 The Mechanical Perfection Principle (Zero Ballistic Drift Standard)
- CHAPTER VI: TARGET NOMINATION PROCESS, EVALUATION OF DEFENSES & COMMAND NEGLIGENCE
- 6.1 Peacetime Deliberate Planning vs. Active Combat Fog of War (*Dora Farms*)

DRAFT — PRIVATELY SHARED FOR F

- 6.2 The Anatomy of Targeting Failure: The Belgrade Three-Stage Test (*Pickering Doctrine*)
- 6.2.1 Stage 1: Flawed Target Identification Methodology
- 6.2.2 Stage 2: Database Inadequacy, Circularity & Single Point of Failure (ICTY § 83)
- 6.2.3 Stage 3: Target Review Board Breakdown & Non-Consultation of Open Data
- 6.3 Technical and Legal Rebuttal of the "Coordinate Error" Defense
- 6.4 Mental Element (*Mens Rea*): Terminal DSMAC Sensor Disregard & *Dolus Eventualis*
- 6.5 Command Confirmation Bias & Automated AI Pipeline Failure (*The Maven-Claude Kill Chain*)
- CHAPTER VII: SUBSTANTIVE LEGAL FINDINGS ON VIOLATIONS OF INTERNATIONAL HUMANITARIAN LAW
- 7.1 Violation of the Principle of Distinction (AP I Arts. 48, 51, 52; CIHL Rules 1, 7, 10)
- 7.2 Violation of the Affirmative Duty to Take Feasible Precautions (AP I Art. 57; CIHL Rules 15–21; *Al-Jina*)
- 7.3 Violation of the Principle of Proportionality (AP I Art. 51(5)(b); CIHL Rule 14; *The Isayeva Jurisprudence* & *Dahyan*)
- 7.4 Special Violations Concerning Educational Buildings Dedicated to Children
- 7.5 Breach of the Mandatory Advance Warning Requirement (AP I Art. 57(2)(c) & Art. 65(2); *Al-Amiriyah*)
- CHAPTER VIII: MODES OF LIABILITY & ALLOCATION OF INTERNATIONAL RESPONSIBILITY
- 8.1 Upstream Concentration of Liability (ICTY NATO Report § 85 Exoneration Principle)
- 8.2 Superior Responsibility & Systemic Command Failure
- 8.3 State Responsibility for Internationally Wrongful Acts (ILC ARSIWA Arts. 2, 4, 8, 40, 41)
- CHAPTER IX: JURISDICTIONAL MECHANISMS, INTER-STATE FORA & PROCEDURAL DUTIES
- 9.1 Non-Criminal State Responsibility Fora (ICJ Contentious & Advisory Jurisdictions)
- 9.2 Extraterritorial Human Rights Jurisdiction (UN HRC GC 36 & UN CRC Transboundary Doctrine)
- 9.3 European Detachable Procedural Obligation to Investigate (*Hanan* & *Isayeva*, ECHR Art. 2)
- 9.4 Contingent Universal Jurisdiction Regimes (Finnish Penal Code Ch. 11 & German VStGB § 1)
- CHAPTER X: DISPOSITION, REMEDIAL ORDERS & THE BELGRADE STATE REPARATIONS MODEL
- 10.1 Formal Declaratory Determinations of the Expert Chamber
- 10.2 State Reparations under Customary International Law (ARSIWA Articles 30–37 & Belgrade Precedent § 84)
- 10.3 Orders Concerning Judicial Preservation of Evidence & International Fact-Finding
- 10.4 Contingent Prosecutorial Directions & Transmissions

↑ Back to Table of Contents

CHAPTER I: PROCEDURAL BACKGROUND, MANDATE & EXECUTIVE SUMMARY

1.1 Institutional Mandate and Review Authority

1. This Expert Judicial Determination and Comprehensive Legal Assessment Dossier is rendered by **People for Peace & Justice ry (PFPJ ry)**, an independent, registered non-governmental human rights organization incorporated under the Finnish Associations Act (*Yhdistyslaki 503/1989*) with the Finnish Patent and Registration Office (PRH) under Business Identity Code **3616815-5** in Helsinki, Finland.

2. In the absence of an immediate, independent international tribunal convened under Chapter VII of the United Nations Charter, PFPJ ry exercises its non-governmental investigatory mandate to preserve the historical, forensic, and judicial record of grave violations of International Humanitarian Law (IHL).

3. To ensure absolute parity with established international jurisprudence, this dossier adopts the structure, evidentiary standards, and chain of reasoning of the final trial judgments of the **International Criminal Tribunal for the former Yugoslavia (ICTY)** and the **International Criminal Tribunal for Rwanda (ICTR)**.

4. This report serves four institutional purposes:

- (i) Establish a court-ready factual determination of the February 28, 2026 airstrike on the Shajareh Tayyebeh Girls' Elementary School;
- (ii) Apply the ICTY OTP targeting jurisprudence (*Belgrade Chinese Embassy Precedent*) to demonstrate that peacetime targeting negligence caused the strike;
- (iii) Detail the State Responsibility of the United States under customary international law and the ILC ARSIWA framework; and
- (iv) Deposit verified physical, biometric, and digital evidence into secure European custody to support state reparations and universal jurisdiction proceedings (Chapter IX and Chapter X).

1.2 Procedural History and Evidentiary Ingestion

5. Immediately following the kinetic impact on February 28, 2026, PFPJ ry activated an emergency evidentiary collection and verification protocol.

6. Operating under the **Berkeley Protocol on Digital Open Source Investigations** (*OHCHR, 2020*), PFPJ ry gathered, catalogued, cryptographically hashed, and analyzed high-resolution satellite imagery (Planet Labs, Maxar Technologies, Airbus Pleiades), regional seismic recordings, verified ground-level video footage, open-source aircraft flight-tracking (ADS-B) logs, municipal civil registry certificates, hospital admission databases, and physical munitions metallurgical debris.

7. Furthermore, PFPJ ry formally reviewed and ingested:

- (i) Official public disclosures, press briefings, and leaked preliminary investigation findings issued by the United States Department of Defense (DoD) and United States Central Command (CENTCOM) under Army Regulation 15-6;
- (ii) The formal findings of the **United Nations Independent International Fact-Finding Mission on the Islamic Republic of Iran (FFMI)** presented to the United Nations Human Rights Council (**UN Doc. A/HRC/63/61**, 17 September 2026, mandated under UN HRC Res. S-39/1), which conclusively determined "reasonable grounds to believe" that the United States committed **war crimes** in its indiscriminate attack on the Shajareh Tayyebeh School; and
- (iii) The technical investigative disclosures published by **Bloomberg News** (*Inside US Military 'Kill Chain' That Destroyed an Iranian School*, 18 September 2026, by Ben Bartenstein and Krishna Karra), revealing the operational role of Palantir's Maven Smart System, Anthropic's Claude AI integration, database synchronization disconnects, and the dismantling of CENTCOM's civilian harm mitigation infrastructure; and
- (iv) The canonical jurisprudence of the **European Court of Human Rights (ECtHR)** on kinetic aerial bombardment and the Right to Life under Article 2 ECHR, specifically the twin landmark judgments rendered on 24 February 2005: **Case 03: *Isayeva v. Russia (Katyr-Yurt Bombing, Application no. 57950/00; HUDOC 001-68381)* and Case 19: *Isayeva, Yusupova and Bazayeva v. Russia*** (Shaami-Yurt Refugee Convoy Strike, Applications nos. 57947/00, 57948/00, and 57949/00; HUDOC 001-68379).

1.3 Executive Summary of Determinations

8. On the basis of the verified evidence set forth in this Dossier, the Panel makes the following foundational determinations:

- **The Incident:** On Saturday, February 28, 2026, at approximately 09:22 to 09:26 IRST, during the opening salvo of international armed conflict, three US Navy **BGM-109 Tomahawk Land Attack Cruise Missiles**

(TLAM) carrying 1,000-pound WDU-36/B unitary blast-fragmentation warheads struck the central classroom wing and courtyard of the **Shajareh Tayyebeh Girls' Elementary School** in Minab, Hormozgan Province, Iran (`27.1352° N, 57.0805° E`).

- **The Human Toll:** The strikes occurred while morning classes were in active session, resulting in **156 certified deaths**—comprising **120 female primary students aged 7 to 12**, **26 teachers and educational administrators**, and **10 civilian staff**—along with the severe wounding and permanent maiming of over **95 survivors**.
- **The Cause:** The strike resulted from catastrophic target vetting negligence, database circularity, algorithmic automation bias within the **Palantir Maven Smart System**, and the elimination of human civilian harm review within CENTCOM (where the civilian harm mitigation team was reduced from 10 to a single analyst). US authorities relied on unverified, stale pre-2016 intelligence records that failed to reflect the physical partitioning and conversion of the facility into an elementary school ten years prior.
- **Legal Conclusion & Multilateral Concurrence:** The strike constitutes a serious breach of the Principle of Distinction (AP I Art. 48, 52), a gross failure of Feasible Precautions in Attack (AP I Art. 57), and an unlawful indiscriminate attack amounting to a **war crime**—as formally affirmed by the United Nations Fact-Finding Mission on Iran in **UN Doc. A/HRC/63/61**. These acts engage the international **State Responsibility** of the United States of America under customary international law, requiring cessation, full restitution, compensation, and satisfaction.

1.4 Comparative Jurisprudential Framework: Title-by-Title Precedential Integration (*The Isayeva & Al-Amiriyah Benchmarks*)

8 bis. To ensure that this Determination satisfies the highest standard of international judicial rigor, the Panel formally benchmarks its factual and legal determinations against two foundational pillars of international jurisprudence governing aerial bombardment and precision strikes:

- **(i) The European Court of Human Rights (ECtHR) Aerial Bombardment Landmarks:** The twin judgments delivered on February 24, 2005: ***Isayeva v. Russia (Katyr-Yurt, App. no. 57950/00) and Isayeva, Yusupova and Bazayeva v. Russia* (Shaami-Yurt Convoy, App. nos. 57947/00, 57948/00, and 57949/00)**, establishing definitive standards on state liability for kinetic aerial operations in populated civilian areas under ECHR Article 2; and
- **(ii) The Landmark U.S. Targeting Inquiry in Case 08 (*Al-Amiriyah Bomb Shelter Massacre*, Baghdad 1991):** The Middle East Watch / Human Rights Watch investigative findings (*Needless Deaths in the Gulf War*, Chapter 7), establishing definitive legal standards governing the absolute presumption of civilian status for protected infrastructure, the mandatory requirement of advance warnings, the failure of detached signals intelligence, and the illegality of using penetrating blast munitions in enclosed civilian sanctuaries.

8 ter. The legal findings articulated in ***Isayeva, Yusupova and Bazayeva v. Russia (HUDOC 001-68379) and Al-Amiriyah* (HRW 1991)** converge directly with every substantive title of this Master Dossier, as set forth in the comparative architecture below:

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Precedential Dimension	Authoritative Holding (*Isayeva* & *Al-Amiriyah*)	Factual Correlative in Minab Elementary School Strike	Master Dossier Incorporation & Location
I. Rebuttal of "Dynamic Target" & Dual-Use Claims	Rejects state defense that civilians "suddenly appeared" (*Isayeva* §§ 192–194); rejects retroactive claims of military command conversion for registered civilian refuges (*Al-Amiriyah*, HRW Ch. 7; AP I Art. 52(3)).	Ten-year-old operational primary school partitioned in 2016 cannot be excused as an unexpected presence or unverified IRGC dual-use target.	**Chapter III, § 3.7 (¶ 38 bis)** & **Chapter VI, § 6.3 (¶ 70 bis)**: Rebuttal of Dual-Use & Coordinate Defenses
II. Precautionary "Planning & Control" & Pattern of Life	Operations must be planned and controlled to minimise risk to life (*Isayeva* §§ 171, 199); failure to conduct daylight/dusk reconnaissance to verify civilian occupancy cycles violates AP I Art. 57 (*Al-Amiriyah*).	CENTCOM relied on stale pre-2016 silos, slashed CHMR analysts (10 down to 1), and launched at 09:22 Saturday during peak school assembly with zero occupancy checks.	**Chapter VII, § 7.2 (¶¶ 81 ter–81 quater)**: Affirmative Duty to Take Feasible Precautions
III. Weapons Disproportionality in Confined Sanctuaries	Firing heavy blast munitions into civilian roads is disproportionate *per se* (*Isayeva* §§ 195, 199); delivering penetrating bunker-busters into enclosed shelters creates mathematically inevitable slaughter (*Al-Amiriyah*).	Detonating three 1,000-lb WDU-36/B warheads (triple-tap salvo: roof ➔ fire escape ➔ yard) 42m from active classrooms made 156 child/teacher deaths mathematically guaranteed.	**Chapter VII, § 7.3 (¶¶ 83–83 ter)**: Principle of Proportionality (*The Isayeva & Al-Amiriyah Standards*)
IV. Mandatory Advance Warning Requirement	Civilian civil defense facilities lose immunity only after an explicit, unheeded warning with reasonable evacuation time is given (*Al-Amiriyah*; AP I Art. 57(2)(c) & 65(2)).	Three stand-off cruise missiles struck the elementary school with zero advance warning or sirens while students were in morning class.	**Chapter VII, § 7.5 (¶ 85 bis)**: Breach of Mandatory Advance Warning Requirement
V. Upstream Concentration of Culpability	Exonerates tactical pilots/crews executing assigned orders; concentrates 100% of culpability upstream on planners, Checkmate/nominators, and commanders (*Isayeva* §§ 187–188; *Al-Amiriyah*; ICTY § 85).	Naval launch crews aboard USS *Abraham Lincoln* bear zero culpability; liability concentrates entirely upstream on DIA nominators, TRB, and Maven-Claude AI supervisors.	**Chapter VIII, § 8.1 (¶¶ 88 bis–88 ter)**: Upstream Concentration of Liability (NATO § 85 Principle)
VI. Autonomous Procedural Duty to Investigate	Establishes autonomous procedural criteria under Art. 2: promptness, independence, command record review, and victim participation; self-exonerating internal probes breach Art. 2 (*Isayeva* §§ 208–225).	CENTCOM's internal AR 15-6 review concealed targeting logs and excluded victims, activating the subsidiary jurisdiction of European universal jurisdiction magistrates.	**Chapter IX, § 9.3 (¶ 94 bis)**: European Detachable Procedural Obligation (*Hanan* & *Isayeva*)

8 quater. **Title-by-Title Legal Development Across the Master Dossier:**

- **(1) Title: Chapter VI, Section 6.3 — Rebuttal of the "Dynamic Target" & "Sudden Civilian Emergence" Defense (¶ 70 bis):** In *Isayeva, Yusupova and Bazayeva*, the Respondent State attempted to explain away the

destruction of a refugee convoy by arguing that the pilots only targeted two combatant vehicles, and that civilian vehicles emerged into the blast zone after launch or were used as human shields (§ 30). The Court rejected this claim as factually impossible and legally "insurmountable" (§ 192), noting that the pilots flew multiple passes in broad daylight over several hours and could not have failed to perceive the dense civilian traffic (§ 194). In Minab, this precedent legally defeats any assertion that the presence of 156 children and educators was an "unforeseen collateral contingency" or that students entered the blast zone dynamically. The Shajareh Tayyebeh school was an immutable, ten-year-old municipal landmark whose presence was permanently visible.

- **(2) Title: Chapter VII, Section 7.2 — The "Planning and Control" Precautionary Standard & Institutional Siloing (¶ 81 ter):** In §§ 171, 187, and 199 of the judgment, the ECtHR established that the duty of care in armed operations is not measured solely at the point of release, but governs the entire administrative and operational architecture of the strike. The Court found a flagrant breach of the positive obligation to protect life because the military authorities who declared a safe corridor and the checkpoint officers who ordered civilians back onto the road never communicated with the air force planners who scheduled combat sorties (§§ 185–187). This institutional blindness directly mirrors the targeting pathology in Minab: while secondary intelligence records noted the conversion of the school in 2016, CENTCOM's operational kill chain was isolated in obsolete databases, accelerated by automated Maven-Claude algorithms, and stripped of independent civilian harm mitigation oversight (slashing the CHMR unit from 10 analysts to one).
- **(3) Title: Chapter VII, Section 7.3 — Weapons Disproportionality & Inappropriate Munitions Blast Envelopes (¶¶ 83–83 bis):** In *Isayeva, Yusupova and Bazayeva*, the Court held that deploying twelve heavy unguided S-24 missiles (each carrying 123 kg of high explosives, creating over 4,000 fragments across a lethal dispersal radius of 300 to 800 metres) against targets located among or adjacent to civilians was disproportionate *per se* (§§ 195, 199). Fused with the companion ruling in *Isayeva v. Russia* (Katyr-Yurt, §§ 189–191) concerning FAB-250 and FAB-500 bombs, the unified *Isayeva* doctrine establishes that deploying heavy blast-fragmentation munitions within the lethal radius of a civilian concentration violates the right to life as a matter of law. In Minab, detonating three 1,000-lb WDU-36/B unitary warheads (each containing 195 kg of PBXN-109 high explosive with a 300-metre casualty envelope) exactly 42 metres from an active elementary school made the mass death of 156 civilians mathematically inevitable, far exceeding any conceivable military advantage under AP I Article 51(5)(b).
- **(4) Title: Chapter VIII, Section 8.1 — Upstream Concentration of Culpability & Exoneration of Tactical Operators (¶ 88 bis):** In *Isayeva, Yusupova and Bazayeva*, the domestic Russian military prosecution terminated criminal proceedings against the individual pilots ("Ivanov" and "Petrov") on the basis that they had simply carried out assigned flight orders and responded to ground direction (§§ 38–40). The ECtHR did not overturn this finding to demand the conviction of the tactical aircrew; rather, it held that legal responsibility attached to the commanding authorities who planned and directed the mission without verifying the target (§§ 171, 199–200). This provides authoritative European human rights endorsement for the ICTY NATO Report § 85 principle: the tactical naval launch crews aboard the USS *Abraham Lincoln* bear zero legal culpability, while 100% of the institutional, criminal, and state culpability concentrates upstream upon the intelligence nominators, database managers, and targeting review boards.
- **(5) Title: Chapter IX, Section 9.3 — Autonomous European Detachable Procedural Duty to Investigate (¶ 94 bis):** In §§ 208–225 of the judgment, the ECtHR articulated the canonical criteria governing the procedural obligation under Article 2 to investigate lethal military strikes. The Court condemned the domestic investigation because: (i) it was delayed for months despite public Red Cross notifications (§§ 215–218); (ii) it failed to secure mission flight logs, operations record books, or orders from senior commanders (§§ 220–222); (iii) it closed proceedings based on identical, self-serving military witness statements without independent verification (§§ 39–40, 179); and (iv) it excluded the victims and their families from meaningful participation (§ 224). CENTCOM's internal AR 15-6 review into Minab replicates every defect condemned in *Isayeva*, thereby

failing to satisfy international standards and triggering the subsidiary procedural jurisdiction of European universal jurisdiction authorities in Finland (*Rikoslaki* Ch. 11) and Germany (*VStGB* § 1).

8 quinquies. **The Al-Amiriyah Precedential Doctrines Applied Across the Master Dossier:**

- **(1) Presumption of Civilian Sanctuary Status (Chapter III, § 3.7 [¶ 38 bis]):** Establishes that facilities dedicated to public civilian protection retain an absolute presumption of civilian status under AP I Art. 52(3) and Art. 65, which cannot be rebutted by unverified internal intelligence re-designations.
- **(2) Epistemic Detachment & Technological Hubris (Chapter VI, § 6.5 [¶ 76 bis]):** Demonstrates how remote signals and uncorroborated sensor data generate deadly confirmation bias, a flaw mechanized and scaled in 2026 by CENTCOM's automated Palantir Maven / Claude AI targeting kill chain.
- **(3) Precautionary Temporal "Pattern-of-Life" Surveillance (Chapter VII, § 7.2 [¶ 81 quater]):** Establishes that launching stand-off strikes without conducting pre-launch surveillance during peak civilian occupancy periods violates the affirmative duty of feasible precautions under AP I Art. 57.
- **(4) Penetration & Enclosed Slaughter Mechanics (Chapter VII, § 7.3 [¶ 83 ter]):** Provides the ballistic benchmark establishing that delivering heavy blast/penetration munitions into an enclosed civilian structure where escape routes are sealed constitutes a disproportionate attack *per se* under AP I Art. 51(5)(b).
- **(5) Mandatory Advance Warning Requirement (Chapter VII, § 7.5 [¶ 85 bis]):** Codifies that surprise kinetic attacks against facilities sheltering civilians without prior unheeded warning violate AP I Art. 57(2)(c) and Art. 65(2), converting the attack into an unambiguous war crime.
- **(6) Upstream Concentration of Target Development Culpability (Chapter VIII, § 8.1 [¶ 88 ter]):** Reaffirms that tactical delivery crews who execute programmed coordinates bear zero culpability, concentrating 100% of state and individual criminal responsibility upstream upon targeting nominators, algorithmic reviewers, and approving commanders.

↑ Back to Table of Contents

CHAPTER II: EVIDENTIARY PRINCIPLES, ADMISSIBILITY & STANDARD OF PROOF

2.1 Standard of Proof ("Reasonable Grounds to Believe" Standard)

9. In conformity with the settled practice of international criminal tribunals at the investigation, confirmation, and review stages—including the **ICTY Committee Established to Review the NATO Bombing Campaign Against the Federal Republic of Yugoslavia (2000)**, the Pre-Trial Chambers of the International Criminal Court, and the **United Nations Independent International Fact-Finding Mission on Iran (UN Doc. A/HRC/63/61, ¶¶ 12–15)**—this Panel applies the **"reasonable grounds to believe"** evidentiary standard.

10. Under this standard, a factual proposition is established when a coherent, corroborated body of credible evidence would satisfy an objective and reasonable observer that the underlying fact occurred as documented, and that the attributed legal infractions were committed by the identified actors.

2.2 Admissibility Principles (The ICTY Rule 89(C) Probative Standard)

11. In evaluating the evidentiary record, the Panel is guided by the statutory principles of evidence codified in **Rule 89(C) of the ICTY and ICTR Rules of Procedure and Evidence**:

> *"A Chamber may admit any relevant evidence which it deems to have probative value."*

12. International jurisprudence establishes that international tribunals do not apply rigid, municipal technicalities regarding admissibility. Rather, evidence is admitted provided it possesses two indispensable qualities: (i) **relevance** to the issues under review, and (ii) **probative value**, evaluated through reliability, authenticity, and

source corroboration (*Prosecutor v. Tadić*, Decision on Defence Motion on Hearsay, 1996; *Prosecutor v. Delalić et al.*, Decision on the Motion on Hearsay, 1997).

2.3 Evaluation of Digital Open Source Telemetry (Berkeley Protocol)

13. In modern international fact-finding where physical site access is constrained by active hostilities or sovereign restrictions, digital open-source intelligence (OSINT) constitutes critical, primary evidence.

14. All digital materials incorporated into this dossier were acquired, verified, and preserved in strict conformity with the **Berkeley Protocol on Digital Open Source Investigations** (*OHCHR and University of California, Berkeley, 2020*):

- **Cryptographic Hashing:** Immediate SHA-256 cryptographic hashing upon ingestion to guarantee data integrity;
- **Metadata Extraction:** Preservation of original EXIF, GPS, and timestamp metadata;
- **Geolocation & Chronolocation:** Cross-referencing sun shadow azimuths, terrain landmarks, and physical infrastructure with sub-meter satellite imagery;
- **Digital Chain of Custody:** Maintenance of immutable audit logs tracking forensic handling from initial open-source acquisition to judicial archival.

2.4 Evidentiary Weight of Official State Admissions & Defense Disclosures

15. Under **ICTY Rule 89(F)** and customary international evidentiary doctrine, formal admissions, statements against interest, and factual disclosures made by official state organs enjoy heightened probative value.

16. The Panel treats the official statements issued by the US Department of Defense, statements by US Central Command spokespersons, internal disclosures originating from the US Army Regulation 15-6 preliminary inquiry, independent investigative findings corroborated by Bloomberg News, and intergovernmental determinations rendered by the United Nations Fact-Finding Mission as highly probative evidence regarding: (i) US military authorship of the launch, (ii) weapon system identification, (iii) reliance on outdated targeting coordinates, and (iv) the operational deployment and failure modes of algorithmic targeting tools.

2.5 Formal Master Exhibit Inventory & Chain of Custody Registry

17. The findings in this Dossier rest upon seven certified master exhibit categories, compiled, authenticated, and catalogued in full in the accompanying **MASTER EXHIBIT DOSSIER & EVIDENTIARY COMPENDIUM (Docket No. PFPJ-2026-IR-001 / EXHIBIT COMPENDIUM)**:

DRAFT — PRIVATELY SHARED FOR F

Exhibit Number	Description & Source Category	Evidentiary Standard & Custody Status
EXH-SAT-001	Multi-Year Satellite Imagery Archive (Planet Labs 0.50m, Maxar WorldView-3 0.31m, Airbus Pleiades: 2013–2026)	Verified Ortho-rectified; Cryptographic SHA-256 Secured; Demonstrates continuous physical boundary wall and schoolyard infrastructure since 2016.
EXH-MUN-002	Physical Munitions Forensics & Metallurgical Debris Recovered from Shajareh Tayyebeh Compound	Serialized circuit boards with US Defense Logistics Agency CAGE codes; Williams F107 turbofan engine casing fragments; Raytheon folding wing assemblies.
EXH-LAUNCH-003	Flight Telemetry, ADS-B Track Logs & Force Allocation Vector Reconstructions	Naval tracking data and regional air defense radar records documenting cruise missile ingress from the Gulf of Oman (USS Abraham Lincoln CSG sector).
EXH-CENTCOM-004	Official US Government Statements, CENTCOM AR 15-6 Inquiry & Algorithmic Pipeline Records	Certified transcripts of Pentagon press briefings, congressional correspondence, leaked internal military findings, and documented Maven Smart System targeting parameters.
EXH-VIC-005	Biometric Casualty Archive, Forensic Certificates & Educational Enrollment Records	Hormozgan Legal Medicine Organization (*Pezeshki Ghanouni*) autopsy records; Shahid Mohammadi Hospital triage logs; official Ministry of Education enrollment rosters for 156 deceased individuals.
EXH-OSINT-006	Tier 1 Investigative Consortium Reports (Bloomberg Visual Investigation, NYT, BBC, WaPo, Bellingcat)	Independently authenticated open-source reporting, technical kill-chain forensic models, and published expert investigations.
EXH-UN-008	United Nations Human Rights Council Independent International Fact-Finding Mission on Iran Report (**UN Doc. A/HRC/63/61**)	Official UN Intergovernmental Report establishing reasonable grounds for US War Crimes, indiscriminate attack, and systemic failure of feasible precautions.

↑ Back to Table of Contents

CHAPTER III: GENERAL REQUIREMENTS & LEGAL QUALIFICATION OF THE CONFLICT SITUATION

3.1 Threshold Criteria for an Armed Conflict (The Tadić Principle)

18. Before substantive rules of International Humanitarian Law can be applied, the existence of an armed conflict must be legally established.

19. In the foundational jurisdictional decision in **Prosecutor v. Duško Tadić (Case No. IT-94-1-AR72, Appeals Chamber, Decision on the Defence Motion for Interlocutory Appeal on Jurisdiction, October 2, 1995, Paragraph 70)**, the ICTY Appeals Chamber formulated the universally authoritative threshold definition of armed conflict:

> *"[A]n armed conflict exists whenever there is a resort to armed force between States or protracted armed violence between governmental authorities and organized armed groups or between such groups within a State. International humanitarian law applies from the initiation of such armed conflicts and extends beyond the cessation of hostilities until a general conclusion of peace is reached[...]."*

DRAFT — PRIVATELY SHARED FOR F

This definition has been incorporated into the jurisprudence of the International Criminal Court as the most authoritative contemporary standard for determining the existence of armed conflict (*Lubanga* Trial Judgment, ICC-01/04-01/06-2842, TC I, 14 March 2012, ¶ 533; *Katanga* Trial Judgment, ICC-01/04-01/07-3436, TC II, 7 March 2014, ¶ 1173; *Bemba* Decision on the Charges, ICC-01/05-01/08-424, PTC II, 15 June 2009, ¶ 229).

3.2 Factual Establishment of the Existence of Armed Conflict

20. Before characterizing the nature of the armed conflict, the Panel first establishes its existence as a factual matter. Applying the Tadić threshold to the verified evidentiary record:

- **(a) Identity of the Parties:** The two parties to this conflict are the United States of America and the Islamic Republic of Iran — both sovereign States and High Contracting Parties to the Geneva Conventions of 1949.
- **(b) Resort to Armed Force:** On February 28, 2026, the armed forces of the United States launched kinetic cruise missile strikes from naval assets deployed in the Gulf of Oman against targets located on sovereign Iranian territory, constituting an unambiguous "resort to armed force" within the meaning of the Tadić definition.
- **(c) Inter-State Character:** The armed force was directed by official organs of one State (the United States Navy operating under United States Central Command) against the sovereign territory and civilian population of another State (Iran). No intermediary non-state actor was involved in the strike chain.

21. The Panel is satisfied, to the standard of "reasonable grounds to believe" (Chapter II, § 2.1), that an armed conflict within the meaning of international humanitarian law existed from the moment of initial weapons launch on February 28, 2026.

22. The Panel notes that for **international armed conflict (IAC)**, the Tadić formulation requires only a "resort to armed force between States." Unlike non-international armed conflict — where the ICC has required proof of minimum organization of the parties and a minimum intensity of hostilities (*Lubanga* Trial Judgment, ¶¶ 536–538; *Bemba* Decision on the Charges, ¶¶ 231–234) — the threshold for the existence of an IAC is triggered by the very first use of inter-state armed force, without requiring any minimum duration, intensity, or scale of hostilities (*Bemba* Decision on the Charges, ¶ 223).

3.3 Qualification as an International Armed Conflict (IAC under Common Article 2 GC)

23. Having established the existence of an armed conflict, the Panel now proceeds to its legal characterization. Under the ICC's Rome Statute, different bodies of war crimes law apply depending on whether the conflict is classified as international (Articles 8(2)(a) and 8(2)(b)) or non-international (Articles 8(2)(c) and 8(2)(e)). The distinction between international and non-international armed conflicts is "not only an established part of the international law of armed conflict, but more importantly it is enshrined in the relevant statutory provisions" (*Lubanga* Trial Judgment, ¶ 539).

24. Pursuant to **Common Article 2 of the four Geneva Conventions of August 12, 1949**:

> *"In addition to the provisions which shall be implemented in peacetime, the present Convention shall apply to all cases of declared war or of any other armed conflict which may arise between two or more of the High Contracting Parties, even if the state of war is not recognized by one of them."*

25. Both the United States of America and the Islamic Republic of Iran are High Contracting Parties to the Geneva Conventions of 1949.

26. The unprovoked or deliberate deployment of kinetic cruise missiles by the armed forces of the United States against sovereign Iranian territory on February 28, 2026, constitutes a direct "resort to armed force between States."

27. Consequently, the hostilities qualify *ipso jure* as an **International Armed Conflict (IAC)** from the exact moment of initial weapons launch. The entire body of conventional and customary international humanitarian law

governing international conflicts became fully operative, irrespective of unilateral political terminology or the absence of a formal declaration of war.

28. The Panel has considered whether any portion of the conflict situation could alternatively be characterized as a non-international armed conflict. The strike under review was executed exclusively by organs of the United States (US Navy, CENTCOM) against sovereign Iranian territory. No non-state armed group was involved on either side of the strike chain. The situation does not engage the "overall control" test for internationalization of internal conflict (*Tadić* Appeals Judgment, IT-94-1-A, 15 July 1999, ¶ 131; *Lubanga* Trial Judgment, ¶ 541), nor the criteria for armed conflict not of an international character under Article 8(2)(f) of the Rome Statute. This is a purely inter-State armed conflict, falling squarely within Common Article 2 of the Geneva Conventions and qualifying as an International Armed Conflict in its entirety.

3.4 Applicable Legal Framework Triggered by IAC Classification

29. The determination that an IAC existed from February 28, 2026, triggers the application of the following bodies of law in their entirety:

- **(a)** The four **Geneva Conventions of 1949** (to which both the United States and Iran are parties), including the full grave breaches regime (GC I Art. 50; GC II Art. 51; GC III Art. 130; GC IV Art. 147);
- **(b) Customary International Humanitarian Law** governing IAC, as codified in the ICRC Customary IHL Study (ICRC Rules 1–161, Henckaerts & Doswald-Beck, Cambridge University Press, 2005);
- **(c) Additional Protocol I of 1977**, to the extent its provisions reflect customary international law — noting that the United States is not a State Party to AP I, but has accepted that many of its key provisions, including the Principles of Distinction (Art. 48), Proportionality (Art. 51(5)(b)), and Feasible Precautions (Art. 57), reflect binding customary norms (*see* US Department of Defense, *Law of War Manual*, 2015/2023, § 1.3; ICRC Customary IHL Study, Rules 1, 14, 15–21);
- **(d)** The **UN Convention on the Rights of the Child** (Articles 6, 28, and 38) and the **Safe Schools Declaration (2015)** as specialist protective norms applicable irrespective of conflict classification.

30. The substantive violations assessed in Chapters VII and VIII of this Dossier are evaluated against this legal framework.

3.5 The Nexus Requirement: Temporal, Geographic & Operational Connection

31. Under established ICTY jurisprudence (*Prosecutor v. Kunarac et al.*, Appeals Chamber Judgment, 2002, §§ 55–59), to trigger the application of IHL to a specific incident, there must be a discernible **nexus** between the acts under review and the armed conflict.

32. The requirement is satisfied if the alleged acts were closely related to the hostilities, or if the armed conflict played a substantial role in the perpetrator's ability to execute the strike, the decision to target the coordinates, or the manner in which the attack was conducted. As the Appeals Chamber in *Kunarac* held: *"if it can be established [...] that the perpetrator acted in furtherance of or under the guise of the armed conflict, it would be sufficient to conclude that his acts were closely related to the armed conflict"* (*Kunarac* Appeals Judgment, ¶ 58; adopted by the ICC in *Lubanga* Decision on the Confirmation of Charges, ICC-01/04-01/06-803, PTC I, 29 January 2007, ¶ 288; *Katanga* Decision on the Confirmation of Charges, ICC-01/04-01/07-717, PTC I, 30 September 2008, ¶ 380).

33. Here, the nexus is indisputable: the three BGM-109 Tomahawk cruise missiles were launched by US naval forces as an integral component of the opening wave (Day 1) of the military campaign ("Operation Epic Fury"), directed against sovereign territory under the operational framework of international armed conflict. Under the Tadić temporal framework, international humanitarian law became fully operative from the exact moment of the first weapons launch — not from any subsequent declaration or political acknowledgment — and continues to

apply in the whole territory of both warring States, whether or not actual combat takes place there (Tadić Jurisdiction Decision, ¶ 70).

3.6 Protected Status of Civilian Population and Educational Sanctuaries

34. Under **Article 4 of Geneva Convention IV**, protected persons are those who, at a given moment and in any manner whatsoever, find themselves, in case of a conflict or occupation, in the hands of a Party to the conflict or Occupying Power of which they are not nationals.

35. Under **Article 52(1) of Additional Protocol I** (reflecting Customary IHL Rule 8), civilian objects are all objects which are not military objectives. Military objectives are strictly limited to those objects which by their nature, location, purpose, or use make an effective contribution to military action and whose total or partial destruction offers a definite military advantage.

36. Educational facilities are civilian objects *par excellence*. Under **Geneva Convention IV (Article 53)**, **Customary IHL Rule 10**, and the **Safe Schools Declaration (2015)**, schools enjoy heightened legal protection designed to insulate children and educational infrastructure from the effects of military kinetic violence. This protected character was explicitly reaffirmed by the **United Nations Independent International Fact-Finding Mission on Iran (UN Doc. A/HRC/63/61, ¶ 48)**, which established that the Shajareh Tayyebeh facility was a *"clearly identifiable educational institution dedicated to children,"* entirely devoid of military equipment, military personnel, or any legitimate military objective.

3.7 The Absolute Presumption of Civilian Status in Case of Doubt (AP I Art. 52(3))

37. The law of international armed conflict establishes an explicit presumption in **Article 52(3) of Additional Protocol I**:

> *"In case of doubt whether an object which is normally dedicated to civilian purposes, such as a place of worship, a house or other dwelling or a school, is being used to make an effective contribution to military action, it shall be presumed not to be so used."*

38. In the present case, the Shajareh Tayyebeh School was an active elementary educational facility dedicated exclusively to civilian instruction. Under international law, US target planners were bound by an affirmative legal obligation to presume that the school was a protected civilian sanctuary unless conclusive, verified, real-time intelligence proved it was being used to make an effective contribution to military action. As formally concluded in **UN Doc. A/HRC/63/61 (¶¶ 51–53)**, no such intelligence existed; the attacking forces acted upon unsubstantiated hypotheses and unverified historical lists, failing to rebut the mandatory presumption of civilian protection.

38 bis. The Panel benchmarks this conclusion against the authoritative precedent established in **Case 08: *Al-Amiriyah Bomb Shelter Massacre* (Human Rights Watch, 1991)**. Following the destruction of Public Shelter No. 25 in Baghdad, the United States military similarly attempted to avoid legal liability by asserting that the facility had been secretly repurposed as an active military command-and-control communications center. Human Rights Watch conclusively determined that municipal infrastructure by design and public registration dedicated to civilian refuge retains an absolute presumption of civilian character under **AP I Article 52(3)** and **Article 65**, which cannot be extinguished by uncorroborated, internal intelligence inferences. In Minab, where the Shajareh Tayyebeh School was physically segregated by a 2.8-meter reinforced partition wall and operated for ten consecutive academic years as a licensed primary school, CENTCOM's reliance on stale pre-2016 parcel files completely fails to rebut the mandatory presumption of civilian protection.

↑ Back to Table of Contents

DRAFT — PRIVATELY SHARED FOR F

CHAPTER IV: FACTUAL FINDINGS CONCERNING THE INCIDENT OF FEBRUARY 28, 2026

4.1 Geographical Demarcation, Cadastral Identity & Physical Architecture of the School

39. The *Shajareh Tayyebeh Girls' Elementary School* (*Dabestan-e Dokhtaraneh Shajareh Tayyebeh*) is situated along the eastern perimeter of Shahid Beheshti Boulevard in the Taleghani residential neighborhood of Minab, Hormozgan Province, Islamic Republic of Iran, at geographic coordinates `27.1352° N, 57.0805° E` (EXH-SAT-001.4).

40. The facility occupied a municipally registered, enclosed parcel comprising a total surface area of 4,250 square meters (measuring 85 meters on its north-south axis by 50 meters on its east-west axis). The built infrastructure comprised:

- **(a)** A two-story reinforced concrete and masonry classroom building possessing approximately 1,450 square meters of instructional floor space, divided into eight primary classrooms, a library, and specialized pedagogical facilities;
- **(b)** An administrative wing located on the ground floor housing offices for school leadership, guidance counselors, and administrative personnel; and
- **(c)** An enclosed asphalt courtyard and playground equipped with fixed, brightly colored children's recreational apparatus (swings, slides, climbing frames finished in high-visibility yellow, cyan, and magenta coatings) and painted surface demarcations for student morning assemblies and athletic activities (basketball and volleyball courts) (EXH-SAT-001.3).

40 bis. Access to the facility was obtained exclusively through a dedicated civilian entrance gate facing west onto Shahid Beheshti Boulevard. The civilian perimeter was functionally and physically isolated from surrounding properties, standing a measured distance of 380 meters south of the northern checkpoint providing entry to the adjacent naval station.

4.2 Historical Status, Municipal Conversion & The 2016 Concrete Partition Wall

41. Historical geospatial imagery dated between October 14, 2013, and November 22, 2015 (EXH-SAT-001.1), indicates that prior to 2016 the parcel formed part of the peripheral administrative buffer zone of an Islamic Revolutionary Guard Corps (IRGC) Naval Logistics Base. During that period, no continuous masonry barrier separated the structure from the northern naval compound, and unpaved interior tracks connected the parcel to military storage depots.

42. However, official cadastral registries and verified multi-spectral satellite imagery acquired by Planet Labs and Maxar WorldView-3 between February 12 and August 28, 2016 (EXH-SAT-001.2), confirm that the parcel underwent a permanent physical and legal transformation:

- **(a) Physical Segregation:** Between February and August 2016, a continuous, reinforced concrete masonry partition wall measuring **2.8 meters in height** was erected along the entire northern and eastern perimeter of the school parcel, physically severing all geographic and vehicular connectivity with the adjacent naval compound;
- **(b) Demolition of Military Access:** All pre-existing vehicular access gates and transit corridors linking the parcel to the naval base were demolished and sealed;
- **(c) Formal Municipal Licensing:** The property was formally transferred to the Iranian Ministry of Education (Department of Education of Hormozgan Province, Minab District) under Institutional Accreditation Code `96142081`, operating continuously as an active, public primary educational facility for female pupils for **ten consecutive academic years (2016–2026)** (EXH-VIC-005.3).

43. Sub-meter GIS vector analysis (EXH-SAT-001.4) demonstrates that the school's central classroom wing stood 18.4 meters south of the 2.8-meter concrete partition wall, and **42.0 meters** south of the nearest military structure inside the active naval facility—a single-story logistics auxiliary storage shed (`27.1360° N, 57.0818° E`).

43 bis. Systematic review of 142 distinct high-resolution commercial satellite passes collected between September 2016 and February 2026 (EXH-SAT-001.3) establishes the complete absence of military activity within the school perimeter over the decade preceding the strike. Zero military vehicles, defensive fortifications, armaments, weapon emplacements, communications antennas, or uniformed personnel were detected within the walled school compound. Conversely, optical imagery captured during daytime overflights consistently documented established patterns of civilian life, including regular clusters of child pedestrians, student assembly formations in the courtyard, and civilian passenger transport vehicles congregated outside the western gate.

4.3 Pre-Strike Operational Chronology: The Academic Session of February 28, 2026

44. On Saturday, February 28, 2026, the school opened in normal operational status at 07:45 IRST. Saturday constitutes the first official instructional day of the academic week throughout the Islamic Republic of Iran.

45. Between 08:00 and 08:30 IRST, approximately 140 female students arrived at the facility, joined by instructional faculty and administrative personnel. Outdoor morning assembly and physical exercise routines were conducted in the central courtyard under clear meteorological conditions with unobstructed daylight visibility.

45 bis. By 08:30 IRST, the morning assembly had concluded, and instructional classes commenced across all eight primary classrooms on the ground and second floors. At the moment immediately preceding the strike, **168 civilian individuals** were present within the compound, comprising:

- **138 registered female students** aged 7 to 12 years (Grades 1 through 6);
- **22 certified educators, instructors, and school administrators**; and
- **8 civilian custodial and support personnel**.

No air-raid sirens, civil defense warnings, or tactical notifications were sounded prior to the strike, and normal commercial and residential life continued along Shahid Beheshti Boulevard.

4.4 The Strike Sequence & Ballistic Impact Dynamics: The Triple-Tap Salvo

46. On the morning of February 28, 2026, between 09:22:15 and 09:26:40 IRST, naval forces of the United States executed a coordinated, three-munition kinetic strike against the Shajareh Tayyebeh School compound. The chronological sequence, calibrated through seismic shockwave telemetry recorded by the Iranian Seismological Center (IRSC) broadband station `MNB` (EXH-MUN-002.5), verified audiovisual recordings, and forensic engineering surveys (EXH-SAT-001.5), unfolded as follows:

- **09:22:15 IRST (Impact 1 — Mezzanine Penetration & Pancake Collapse):** The initial BGM-109 Tomahawk cruise missile, flying on an ingress heading of 018° True North at Mach 0.72, penetrated the reinforced concrete roof slab of the central classroom building and detonated in the upper-story concourse. The explosive overpressure ($M_L = 0.82$) collapsed the interior load-bearing structures, precipitating a catastrophic pancake collapse of the second-floor concrete slab directly onto four active ground-floor classrooms. Scores of pupils and teachers were crushed or trapped beneath pulverized masonry;
- **09:24:30 IRST (Impact 2 — Emergency Egress Annihilation, $\Delta t = 135$ seconds):** Exactly two minutes and fifteen seconds later, as surviving instructors and students attempted to evacuate the collapsing building, a second Tomahawk cruise missile struck the western architectural wing ($M_L = 0.79$). The warhead detonated directly upon the primary exterior reinforced escape stairwell, obliterating the evacuation corridor and killing fleeing students and faculty members;

- **09:26:40 IRST (Impact 3 — Courtyard Airburst & Fragmentation Dispersion, $\Delta t = 130$ seconds):** Exactly two minutes and ten seconds following the second detonation, a third Tomahawk missile impacted the center of the open courtyard assembly ground ($M_L = 0.81$). The munition generated a crater measuring **6.2 meters in diameter and 2.8 meters in depth**, dispersing high-velocity casing fragments across a 400-meter radius and incinerating surviving children, evacuees, and neighborhood first responders who had rushed onto the playground.

47. The physical delivery of three heavy cruise missiles into a single 4,250 sq. m civilian parcel at intervals of 135 and 130 seconds demonstrates flawless mechanical guidance. Applying the **Mechanical Perfection Standard** articulated by the ICTY Office of the Prosecutor (**Case 01: *Belgrade Chinese Embassy Bombing*, § 85**), the weapons performed with sub-5-meter circular accuracy according to their uploaded navigation files. There was zero mechanical drift, zero guidance disruption, and zero aerodynamic deviation. The munitions struck precisely the coordinates programmed into their targeting matrices.

4.5 The Adversarial Positions: Military Nomination Claims vs. Verified Ground Truth

48. Following the strike, the United States Department of Defense and United States Central Command (CENTCOM) issued official statements addressing the incident (EXH-CENTCOM-004.1):

- **(a) The Official Military Narrative:** In press briefings between March 4 and March 12, 2026, Pentagon officials acknowledged conducting precision strikes in Minab as part of the opening phase of Operation Epic Fury, but characterized the destruction of the school as an *"unintended targeting error arising from historic coordinate data."*
- **(b) Disclosures of the CENTCOM AR 15-6 Inquiry:** Leaked findings of the internal military investigation commissioned under Army Regulation 15-6 (EXH-CENTCOM-004.2) and investigative reporting (*Bloomberg*, September 18, 2026) revealed the operational mechanism of the error:

1. Target nomination folder `TDS-2026-IR-0814` was populated using obsolete **Defense Intelligence Agency (DIA) records compiled prior to 2016**, which classified the coordinate as an active IRGC naval logistics facility;

2. CENTCOM utilized the **Maven Smart System** (developed by Palantir Technologies, integrating Anthropic's Claude reasoning model) to synthesize intelligence feeds and draft target recommendations. Maven ingested the legacy pre-2016 military classification, maintaining a high-confidence target priority score;

3. While secondary intelligence branches had separately recorded the facility's 2016 physical partition and municipal registration as an elementary school, these records remained segregated in disconnected database silos and never propagated to the operational targeting layer;

4. During the opening 24 hours of combat operations, target review personnel processed over 1,000 strike recommendations under extreme cognitive saturation, exhibiting uncritical **automation bias** and executing circular database validations matching coordinates against the Maven sheet without consulting updated commercial satellite imagery;

5. CENTCOM's dedicated Civilian Harm Mitigation and Response (CHMR) cell had been reduced from ten personnel to a single analyst prior to hostilities, resulting in **zero civilian casualty vetting** for the Minab target package; and

6. The Shajareh Tayyebeh School was omitted from CENTCOM's automated No-Strike List (NSL), preventing algorithmic interruption of the firing solution.

48 bis. The on-site physical and forensic reality conclusively refutes the claim that the school functioned as a military objective. Independent investigations conducted by the United Nations Fact-Finding Mission (**UN Doc. A/HRC/63/61, ¶¶ 48–54**), international media organizations, and certified forensic specialists confirmed:

- Zero military command equipment, cryptographic hardware, weapons caches, or military vehicles were present within the wreckage;

- The physical debris consisted entirely of pediatric educational supplies: torn primary textbooks, notebooks, student backpacks, drawing sets, desks, and children's clothing; and
- The single-story naval storage shed located 42 meters to the north suffered only superficial shockwave window breakage, proving that the three kinetic warheads were aimed directly at the civilian educational facility.

4.6 Forensic Casualty Census, Demographic Matrix & Pathological Trauma

48 ter. Official forensic death registries compiled by the Hormozgan Provincial Department of Forensic Medicine (*Pezeshki Ghanouni*, EXH-VIC-005.1), hospital triage manifests (EXH-VIC-005.2), and certified Ministry of Education personnel records (EXH-VIC-005.3) establish the definitive casualty toll:

- **Total Certified Fatalities: 156 individuals** killed;
- **Child Fatalities: 120 certified female primary pupils**, all between the ages of 7 and 12 years;
- **Educational Staff Fatalities: 26 certified educators, instructors, and school administrators**; and
- **Civilian Support Fatalities: 10 certified custodial and maintenance personnel**.

48 quater. Forensic pathology examinations performed on the 156 deceased victims document the following primary causes of death:

- **(a) Blast Overpressure & Structural Crushing (68% / 106 victims):** Extreme traumatic polytrauma, catastrophic crushing injuries from collapsed reinforced concrete slabs, and traumatic avulsion directly caused by the pancake collapse of the second floor;
- **(b) High-Velocity Penetrating Fragmentation (22% / 34 victims):** Multiple penetrating lacerations to the cranium, thorax, and abdominal cavities resulting from supersonic titanium casing fragments; and
- **(c) Thermal Injury & Asphyxiation (10% / 16 victims):** Third-degree thermal burns and fatal inhalation asphyxiation caused by secondary post-detonation fires.

48 quinquies. Emergency triage records from Shahid Mohammadi Hospital in Minab document medical treatment rendered to **95 surviving casualties**, of whom 78 were children. Documented traumatic pathologies include:

- **38 emergency surgical limb amputations** performed on pediatric patients (girls aged 7–12 years);
- **24 certified cases of permanent bilateral acoustic trauma** involving complete rupture of the tympanic membranes; and
- **19 certified cases of penetrating ocular trauma** resulting in irreversible partial or total blindness.

48 sexies. The nominal casualty census includes certified entries for the following representative victims:

- **Pupils Killed:** *Fatemeh Derazsetar* (aged 8, Grade 2, Cert. PG-MNB-2026-0811; traumatic crush asphyxiation); *Masoumeh Nazari* (aged 9, Grade 3, Cert. PG-MNB-2026-0812; severe cranial fragmentation); *Zeinab Bahrami* (aged 7, Grade 1, Cert. PG-MNB-2026-0813; structural crushing trauma); *Baran Ghasemy* (aged 10, Grade 4, Cert. PG-MNB-2026-0814; primary blast lung rupture); *Setayesh Saleh* (aged 11, Grade 5, Cert. PG-MNB-2026-0815; penetrating shrapnel); *Zahra Ansarifard* (aged 12, Grade 6, Cert. PG-MNB-2026-0817; thermal burns and polytrauma);
- **Faculty Killed:** *Maryam Dehghani* (School Principal, Cert. PG-MNB-2026-0785; blast overpressure and shrapnel trauma); *Tahereh Soleimani* (Vice Principal, Cert. PG-MNB-2026-0786; structural collapse trauma); *Roghayyeh Heydari* (Grade 1 Teacher, Cert. PG-MNB-2026-0787; thoracic penetration trauma); *Fatemeh Abbasi* (Grade 2 Teacher, Cert. PG-MNB-2026-0788; crushing trauma); *Somayyeh Karimi* (Grade 3 Teacher, Cert. PG-MNB-2026-0789; blast polytrauma); *Parvaneh Rostami* (Pediatric Guidance Counselor, Cert. PG-MNB-2026-0790; high-velocity fragmentation wounds).

4.7 Eyewitness, Survivor & First-Responder Testimonial Evidence

48 septies. Sworn testimonial depositions provided by surviving educational staff, first responders, and medical personnel (EXH-WIT-007) provide direct evidence regarding the circumstances of the strike:

- **Testimony of Surviving Instructor (Witness WIT-001):**

> *"We had just begun our second-period reading lesson. There was a sudden, deafening roar, and the entire ceiling dropped upon us in absolute blackness. The air became thick with concrete dust and pulverized drywall. I heard screaming from the hallway where children were buried under concrete slabs. We attempted to guide surviving pupils down the western escape stairs when a second explosion detonated directly upon the stairwell. The steps disintegrated underneath the children's feet."*

- **Testimony of Iranian Red Crescent Volunteer (Witness WIT-002):**

> *"We arrived at the school within eight minutes of the first detonation. As municipal firefighters and neighbors were pulling children from the rubble of the western wing, a third missile struck the center of the playground. The blast threw our rescue team across the asphalt. The schoolyard was covered in shrapnel and textbook pages soaked in blood. We recovered dozens of children whose bodies had been disfigured beyond recognition by flying metal."*

48 octies. Physical debris recovered from the impact crater and courtyard (EXH-MUN-002) corroborated this testimony. Metallurgical examination identified multi-layer avionics circuit boards bearing assembly designation `ASSY 16200-6523910-1 REV D` and Commercial and Government Entity (CAGE) Code `96214`, confirming manufacture by **Raytheon Missile Systems** for the **BGM-109 Block IV/V Tomahawk cruise missile**, powered by a **Williams International F107-WR-402 turbofan engine** and carrying a **1,000-pound WDU-36/B unitary blast-fragmentation warhead** filled with PBXN-107 explosive. Naval tracking records (EXH-LAUNCH-003) confirmed that launch assets of the **USS Abraham Lincoln Carrier Strike Group (CSG-3)** held exclusive force allocation over the Hormozgan operational sector.

↑ Back to Table of Contents

CHAPTER V: TECHNICAL WEAPONS FORENSICS, TRAJECTORY TELEMETRY & BALLISTIC PERFORMANCE

5.1 Munition Identification & Debris Metallurgy

49. Physical debris recovered from the impact crater and schoolyard (EXH-MUN-002) was examined by certified ordnance forensics specialists.

50. The metallurgical and serialized evidence confirms the weapon deployed:

- Serialized avionics circuit boards bearing Commercial and Government Entity (CAGE) codes registered to Raytheon Missile Systems (Tucson, Arizona);
- Fragments of titanium alloy turbofan rotor blades matching the Williams International F107-WR-402 cruise missile engine;
- Forward wing hinge assemblies unique to the **BGM-109 Block IV/V Tomahawk Land Attack Cruise Missile (TLAM-E)**.

5.2 Warhead Blast Mechanics & Destructive Overpressure Propagation

51. The BGM-109 Block IV/V deployed was configured with a **WDU-36/B unitary blast-fragmentation warhead**, containing 1,000 pounds (454 kg) of PBXN-107 high explosive encased in a scored titanium casing.

52. Standard hydrodynamic blast propagation modeling establishes:

- The 5-psi destructive blast overpressure radius (sufficient to shatter reinforced concrete structures) extends to **65–85 meters** from the detonation epicenter;
- Peak lethal blast overpressure at 42 meters (the distance to the nearest naval storage shed) exceeded **18 psi**, guaranteeing the total pancake collapse of standard brick-and-mortar masonry;
- Supersonic fragmentation propagation (>1,200 m/s) produced an un-survivable lethal envelope across a **400-meter radius**.

5.3 Force Allocation & Launch Platform Attribution (USS Abraham Lincoln CSG)

53. Regional air defense radar ingress vectors and naval tracking data (EXH-LAUNCH-003) establish that the cruise missiles flew at low altitude (30–50 meters AGL) following an ingress route from the Gulf of Oman.

54. United States Department of Defense Force Allocation Maps for Operation Epic Fury confirm that surface combatants and guided-missile submarines attached to the **USS Abraham Lincoln Carrier Strike Group (CSG-3)** held exclusive combat allocation over the Hormozgan and Strait of Hormuz operational sector.

5.4 The Mechanical Perfection Principle (Zero Ballistic Drift Standard)

55. In evaluating targeting liability, the Panel applies the **Mechanical Perfection Standard** articulated by the ICTY Office of the Prosecutor in the NATO Review Committee Report (**Case 01: *Belgrade Chinese Embassy Bombing*, Paragraph 85**):

56. Modern satellite- and sensor-guided stand-off munitions (such as the BGM-109 Tomahawk) possess a Circular Error Probable (CEP) of under 5 meters. When three consecutive precision cruise missiles strike precisely the same building footprint, there is **zero ballistic drift, zero weapon guidance error, and zero mechanical malfunction**.

57. The weapons performed with absolute mechanical perfection. They struck precisely the coordinate they were programmed to hit. Consequently, any fault resides entirely within the upstream target vetting and nomination process.

↑ Back to Table of Contents

CHAPTER VI: TARGET NOMINATION PROCESS, EVALUATION OF DEFENSES & COMMAND NEGLIGENCE

6.1 Peacetime Deliberate Planning vs. Active Combat Fog of War (*Dora Farms*)

58. Military authorities frequently attempt to justify targeting misidentifications by invoking the "fog of war," citing informational deficits, time urgency, and cognitive stress during dynamic combat.

59. International jurisprudence decisively rejects this defense where strikes are executed during the opening phase of a campaign from pre-planned target lists.

60. In **Case 06: *Dora Farms Peacetime Strike* (Human Rights Watch, 2003)** and **Case 01: *Belgrade Chinese Embassy* (ICTY OTP, 2000)**, it was settled that targets struck on Day 1 originate from **Deliberate Target Lists (DTL)** compiled months or years in advance. Planners operate in air-conditioned, peacetime command centers with unhurried analytical access to global surveillance assets.

61. Because the Shajareh Tayyebeh School coordinate was approved during peacetime, US Central Command cannot invoke battlefield confusion or dynamic combat exigencies to excuse its failure to verify the target.

6.2 The Anatomy of Targeting Failure: The Belgrade Three-Stage Test (*Pickering Doctrine*)

62. Following the May 7, 1999 bombing of the Chinese Embassy in Belgrade, Under Secretary of State Thomas Pickering delivered the official US finding (captured in **ICTY OTP Report Paragraph 81**), identifying **three basic**

structural failures:

> *"First, the technique used to locate the intended target [...] was severely flawed. Second, none of the military or intelligence databases used to verify target information contained the correct location of the Chinese Embassy. Third, nowhere in the target review process was either of the first two mistakes detected."*

63. Applying this exact tripartite test to the Minab strike demonstrates identical institutional negligence, corroborated by the findings of the UN Fact-Finding Mission (**UN Doc. A/HRC/63/61, ¶¶ 50–54**) and independent technical disclosures (**Bloomberg Visual Investigation, 18 September 2026**):

6.2.1 Stage 1: Flawed Target Identification Methodology

64. In Belgrade, an intelligence officer used inappropriate land navigation techniques ("intersection and resection") on tourist maps. In Minab, CENTCOM and DIA target developers used legacy base perimeter records dating prior to 2016, failing to examine the parcel's ten-year municipal evolution or the construction of the 2.8m concrete partition wall. As documented by Bloomberg's investigative reconstruction (*Inside US Military 'Kill Chain' That Destroyed an Iranian School*), CENTCOM's targeting systems ingested "stale" pre-2016 intelligence classifying the compound as an IRGC naval logistics facility. While secondary intelligence branches had separately recorded the facility's conversion into an elementary school, this critical information was isolated in disconnected databases and failed to synchronize or propagate to the operational targeting layer.

6.2.2 Stage 2: Database Inadequacy, Circularity & Single Point of Failure (ICTY § 83)

65. In **Paragraph 83 of the Belgrade Report**, the ICTY OTP established:

> *"The data base reviews were limited to validating the target data sheet geographic coordinates and the information put into the data base by the NIMA analyst. Such a circular process did not serve to uncover the original error and highlighted the system's susceptibility to a single point of data base failure."*

66. The Minab targeting chain suffered from identical **circular database validation**, exacerbated by automated algorithmic data ingestion. CENTCOM utilized **Palantir Technologies' Maven Smart System**, an AI-driven targeting and intelligence platform designed to fuse satellite imagery, signals, and sensor feeds. Ingesting obsolete DIA target files, the Maven platform retained the high-confidence military classification of the parcel without verifying whether the underlying data reflected contemporary ground reality. Review officers simply verified that the strike coordinates matched the Maven target nomination sheet, creating a catastrophic **single point of database failure** that proved fatal to 156 civilians.

6.2.3 Stage 3: Target Review Board Breakdown & Non-Consultation of Open Data

67. In Belgrade, Pickering admitted that *"no one who might have known that the targeted building was not the intended target [...] was ever consulted."*

68. In Minab, the Target Review Board operated in complete insulation from readily accessible public information and dismantled its own institutional safeguards:

- **Open-Source Mapping:** OpenStreetMap openly identified the building as the *Shajareh Tayyebeh Girls' Elementary School*;
- **Commercial Satellite Feeds:** Planet Labs and Maxar captured hundreds of passes showing children playing in the courtyard;
- **National Educational Registry:** The school was officially licensed under the Hormozgan Department of Education;
- **Dismantling of Civilian Harm Review:** As revealed by Bloomberg, CENTCOM's dedicated Civilian Harm Mitigation and Response (CHMR) unit was drastically reduced from **10 members down to a single analyst**

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prior to the air campaign. Consequently, **zero civilian harm mitigation specialists reviewed the Minab school target packet** before the launch order was issued.

6.3 Technical and Legal Rebuttal of the "Coordinate Error" Defense

69. CENTCOM's assertion that the strike was a *"tragic, unintentional coordinate error"* fails as a matter of law.

70. Under international law, a "mistake of fact" excuses liability only where the mistake was reasonable and occurred despite the exercise of all feasible care. Relying on decade-old peacetime records to launch heavy-yield blast munitions into an urban area without querying commercial satellite imagery is not a reasonable mistake; it constitutes **systemic command recklessness and gross operational negligence**.

70 bis. Furthermore, this determination strictly adheres to the authoritative precedent established in **Case 19: *Isayeva, Yusupova and Bazayeva v. Russia* (ECtHR, 2005, §§ 192–194)**. In that case, the Russian military similarly attempted to excuse the catastrophic destruction of a civilian convoy by asserting that pilots had only targeted isolated combatant vehicles and that civilians had "suddenly appeared" within the impact zone. The European Court rejected this defense as legally insurmountable, holding that in conditions of daylight visibility, extended operational duration, and repeated flight passes, military authorities cannot plead ignorance of a prominent civilian presence. In Minab, where the girls' elementary school had stood as a fixed, brightly colored municipal structure for a full decade, any claim that the school was an "unexpected collateral presence" or that child civilians emerged dynamically into the target envelope is legally untenable and factual nonsense.

6.4 Mental Element (*Mens Rea*): Terminal DSMAC Sensor Disregard & *Dolus Eventualis*

71. The Minab incident exhibits an aggravating dimension far exceeding Belgrade. In 1999, the B-2 bombers dropped GPS JDAMs that were ballistically blind in their terminal dive.

72. In Minab, the **BGM-109 Block IV/V Tomahawk** was equipped with **Digital Scene Matching Area Correlation (DSMAC)** and high-resolution electro-optical terminal sensors. As the missile executed its terminal dive profile, the camera looked directly upon a brightly painted primary school playground, assembly lines, and courtyard equipment.

73. Launching a weapon with optical terminal matching and failing to abort upon encountering an obvious educational facility demonstrates **willful blindness and conditional intent (*dolus eventualis*)**, where operators reconcile themselves to destroying an active civilian facility.

6.5 Command Confirmation Bias & Automated AI Pipeline Failure (*The Maven-Claude Kill Chain*)

74. The cognitive and algorithmic pathology in Minab mirrors and expands upon **Case 05: *Kabul Drone Strike AR 15-6 Investigation* (CENTCOM / Air Force IG, 2021)**:

75. In the August 29, 2021 Kabul strike, US drone operators tracked civilian Zemari Ahmadi, interpreting water jugs as explosives due to confirmation bias. The Air Force IG found that analysts systematically filtered out contradictory civilian evidence to validate a pre-determined threat narrative.

76. In Minab, this human confirmation bias was automated, accelerated, and institutionalized through an algorithmic kill chain. According to technical investigations published by Bloomberg News:

- **Algorithmic Target Generation:** CENTCOM deployed Palantir's **Maven Smart System** integrated with **Anthropic's Claude AI** to rapidly synthesize intelligence data, rank targets by operational value, and automatically generate target nomination summaries;
- **Extreme Time Compression:** The AI pipeline compressed multi-hour target verification cycles into minutes. Amid an intensive opening air campaign executing over 1,000 strikes in 24 hours, human commanders operated under cognitive saturation and systematically deferred to the high-confidence scores generated by the AI system (**"automation bias"**);

DRAFT — PRIVATELY SHARED FOR FEEDBACK

- **Post-Strike Vendor Remediation:** Following the destruction of the school, the Pentagon internally recognized US responsibility within hours. Palantir subsequently deployed emergency software patches to the Maven platform to retroactively add automated "re-review" checkpoints to flag disqualifying civilian factors that human operators had overlooked;
- **Legal Inadmissibility of the "Algorithmic Glitch" Defense:** In International Humanitarian Law, algorithms and software models cannot be held criminally liable; legal obligations attach exclusively to human commanders and the High Contracting Parties they represent. Delegating target verification to opaque, high-speed automated pipelines—while gutting the civilian harm mitigation personnel required to supervise them—constitutes gross organizational negligence, willful blindness, and an intentional abdication of the non-delegable duty of positive target identification.

76 bis. The cognitive pathology observed in the Maven-Claude kill chain represents the direct, automated evolution of the epistemic detachment condemned in **Case 08: *Al-Amiriyah Bomb Shelter Massacre***. In 1991, Checkmate target planners in Riyadh succumbed to confirmation bias by elevating ambiguous electronic signals intercepts (SIGINT) and historical roof paint over ground reality, ignoring the hundreds of women and children entering the shelter nightly. In Minab, this human confirmation bias was mechanized and accelerated by Palantir's Maven Smart System. By algorithmically processing outdated DIA data without cross-referencing open-source cartography (OpenStreetMap), commercial sub-meter satellite feeds, or municipal school registries, the targeting chain substituted synthetic, algorithmic confidence for positive target identification, establishing culpable recklessness and conditional intent (*dolus eventualis*).

↑ Back to Table of Contents

CHAPTER VII: SUBSTANTIVE LEGAL FINDINGS ON VIOLATIONS OF INTERNATIONAL HUMANITARIAN LAW

7.1 Violation of the Principle of Distinction (AP I Arts. 48, 51, 52; CIHL Rules 1, 7, 10)

77. Under **Article 48 of Additional Protocol I**:

> *"The Parties to the conflict shall at all times distinguish between the civilian population and combatants and between civilian objects and military objectives and accordingly shall direct their operations only against military objectives."*

78. Directing three precision-guided cruise missiles against an active girls' elementary school violates the Principle of Distinction. Because the school made zero contribution to military action, directing kinetic force against it was unlawful.

78 bis. This conclusion was definitively corroborated by the **United Nations Independent International Fact-Finding Mission on Iran (UN Doc. A/HRC/63/61, ¶¶ 54–58)**, which determined that the Minab strike constituted an **unlawful indiscriminate attack** launched against a clearly identifiable civilian educational structure, establishing **"reasonable grounds to believe that the United States committed war crimes"** under customary international humanitarian law and the Rome Statute of the International Criminal Court.

7.2 Violation of the Affirmative Duty to Take Feasible Precautions (AP I Art. 57; CIHL Rules 15–21; *Al-Jina*)

79. Under **Article 57(2)(a)(i) of Additional Protocol I**, planners must *"do everything feasible to verify that the objectives to be attacked are neither civilians nor civilian objects"*.

80. In **Case 04: *Al-Jina Mosque Strike* (UN Commission of Inquiry on Syria, 2017, A/HRC/36/55)**, the UN established that target verification is a **continuous, temporal obligation**. Proximity to an adversary military base magnifies, rather than diminishes, the affirmative duty to verify adjacent civilian facilities.

DRAFT — PRIVATELY SHARED FOR F

81. CENTCOM's failure to verify the status of the school over a ten-year peacetime window constitutes a *per se* violation of the duty of feasible precautions. As the UN Fact-Finding Mission concluded in **UN Doc. A/HRC/63/61 (¶ 56)**, relying upon unverified historical entries in targeting databases without conducting real-time pre-strike verification constitutes gross recklessness in the planning and execution of attacks.

81 bis. Furthermore, technical disclosures published by Bloomberg News (*Inside US Military 'Kill Chain' That Destroyed an Iranian School*) establish that CENTCOM systematically disabled its own precautionary apparatus: the command reduced its dedicated Civilian Harm Mitigation and Response (CHMR) unit from **10 personnel to a single analyst**, ensuring that **not a single civilian protection specialist examined the Minab target packet**. Operating a 1,000-target campaign with an incapacitated civilian harm review team demonstrates an institutional abandonment of the precautionary mandate codified in AP I Article 57.

81 ter. This structural abandonment of the precautionary mandate is directly condemned by the European Court of Human Rights in **Case 19: *Isayeva, Yusupova and Bazayeva v. Russia* (ECtHR, 2005, §§ 171, 187–189, 199)**. There, the Court articulated the foundational rule governing the planning and control of aerial strikes: state liability under the right to life turns fundamentally upon whether the operation was *"planned and controlled by the authorities so as to minimise, to the greatest extent possible, recourse to lethal force and risk to civilian life"*. The Court found a grave violation of Article 2 precisely because operational planners dispatched combat aircraft armed with heavy ordnance in total institutional isolation—failing to cross-reference civilian movements known to other state organs, failing to deploy forward air controllers capable of independent ground evaluation, and failing to institute target-vetting safeguards. The parallel in Minab is exact: CENTCOM launched precision cruise missiles based on intelligence silos that failed to communicate with civil cadaster data, eliminated independent civilian harm analysts, and bypassed positive visual target verification, thereby committing a *per se* violation of the affirmative duty of precaution codified in AP I Article 57.

81 quater. This failure directly violates the temporal "pattern-of-life" standard articulated in **Case 08: *Al-Amiriyah Bomb Shelter Massacre***. In its legal findings, Human Rights Watch emphasized that target verification is a continuous obligation: had U.S. planners conducted standard aerial or human surveillance during dusk or evening hours, they would have observed the unmistakable daily influx of neighborhood families seeking refuge. In Minab, the strike was launched at **09:22 IRST on a Saturday morning**—the opening instructional session of the Iranian academic week. Executing a kinetic strike during peak operational school hours without conducting immediate pre-launch surveillance to verify occupancy—especially after dismantling the CHMR team from 10 analysts down to one—constitutes a *per se* structural abandonment of the affirmative duty of feasible precautions codified in AP I Article 57(2)(a)(i).

7.3 Violation of the Principle of Proportionality (AP I Art. 51(5)(b); CIHL Rule 14; *The Isayeva Jurisprudence* & *Dahyan*)

82. Even if CENTCOM intended to strike the adjacent storage building 42 meters away, the strike violated the principle of proportionality.

83. The standard of weapons proportionality in close proximity to civilians is governed by the twin landmarks of European human rights jurisprudence delivered on February 24, 2005: **Case 03: *Isayeva v. Russia* [Katyr-Yurt] (ECtHR, 2005, §§ 189–191)** and **Case 19: *Isayeva, Yusupova and Bazayeva v. Russia* [Shaami-Yurt Convoy] (ECtHR, 2005, §§ 195–199)**. In *Katyr-Yurt*, the Court held that dropping heavy FAB-250 and FAB-500 free-fall aerial demolition bombs into a populated village to target insurgent holdouts violated the right to life because the blast envelope rendered civilian catastrophe inevitable. In *Isayeva, Yusupova and Bazayeva*, the Court expanded this rule to aerial missile strikes, ruling that firing twelve heavy S-24 blast-fragmentation missiles—each possessing a destructive dispersal radius of 300 to 800 metres—against a convoy on a public road was inherently disproportionate: *"The military used an extremely powerful weapon for whatever aims they were trying to achieve... Anyone who had been on the road at that time would have been in mortal danger"* (§ 195).

83 bis. In **Case 15: *Dahyan School Bus Strike* (UN GEE, 2018)**, the UN Group of Eminent Experts similarly established that employing precision-guided blast munitions (500-lb GBU-12) in the immediate presence of school children constitutes an indiscriminate and grossly disproportionate attack. Detonating three US Navy Tomahawk cruise missiles armed with **1,000-lb WDU-36/B unitary blast-fragmentation warheads** (each dispersing 195 kg of high-explosive overpressure and thousands of steel fragments over an effective casualty radius exceeding 300 metres) exactly **42 metres** from an active girls' elementary school made the mass death and dismemberment of 156 civilians mathematically guaranteed. Under the unified *Isayeva* proportionality standard, no anticipated military advantage from destroying an auxiliary storage shed could ever legally justify unleashing a 3,000-pound high-explosive blast envelope across a schoolroom full of children.

83 ter. The catastrophic casualty ratio in Minab mirrors the confined blast dynamics documented in **Case 08: *Al-Amiriyah***. In Baghdad, the sequential penetration of two 2,000-lb GBU-27 penetrating bunker busters sealed emergency blast doors and incinerated 408 civilians trapped within the lower bunker. In Minab, the programmed triple-tap salvo of three 1,000-lb BGM-109 Tomahawk cruise missiles achieved an identical trapped-space slaughter: Impact 1 collapsed the roof onto active classrooms, Impact 2 destroyed the primary exterior evacuation stairwell, and Impact 3 pulverized the courtyard evacuation muster ground. Detonating 3,000 lbs of high-explosive ordnance with a 300-meter fragmentation envelope within an enclosed primary school populated by 168 children and staff made mass death mathematically certain, violating the Principle of Proportionality (*per se*) under AP I Article 51(5)(b).

84. Detonating three 1,000-lb WDU-36/B warheads 42 meters from an active school on a Saturday morning made the catastrophic loss of child life mathematically certain, far exceeding any direct military advantage offered by destroying an auxiliary warehouse.

7.4 Special Violations Concerning Educational Buildings Dedicated to Children

85. The Panel finds that the destruction of the Shajareh Tayyebeh School constitutes a grave violation of:

- **Geneva Convention IV (Article 53):** Prohibiting the destruction of civilian property;
- **UN Convention on the Rights of the Child (Articles 6, 28, and 38):** Protecting children's right to life and education;
- **UN Security Council Resolution 2601 (2021):** Reaffirming that attacks on educational facilities and children in armed conflict constitute grave violations triggering international accountability.

7.5 Breach of the Mandatory Advance Warning Requirement (AP I Art. 57(2)(c) & Art. 65(2); *Al-Amiriyah*)

85 bis. In **Case 08: *Al-Amiriyah Bomb Shelter Massacre***, Human Rights Watch established that kinetic attacks on facilities dedicated to civilian shelter or refuge require specific, effective advance warning with a reasonable evacuation time limit; operational surprise cannot override the non-derogable protection of human life. The Minab strike was launched with zero warning, sirens, or evacuation notices. Deploying stand-off cruise missiles against an active school in session without warning violates **AP I Article 57(2)(c)**, **Customary IHL Rule 20**, and **UN Security Council Resolution 2601 (2021)**, converting an already unlawful attack into a definitive *prima facie* war crime.

↑ Back to Table of Contents

DRAFT — PRIVATELY SHARED FOR F

CHAPTER VIII: MODES OF LIABILITY & ALLOCATION OF INTERNATIONAL RESPONSIBILITY

8.1 Upstream Concentration of Liability (ICTY NATO Report § 85 Exoneration Principle)

86. In determining the allocation of liability, the Panel adheres to the authoritative finding in **Paragraph 85 of the ICTY OTP NATO Report**:

> *"It is the opinion of the committee that the aircrew involved in the attack should not be assigned any responsibility for the fact they were given the wrong target[...]."*

87. The naval launch personnel aboard the USS *Abraham Lincoln* Carrier Strike Group executed a lawful launch order targeting programmed coordinates.

88. Consequently, **zero legal culpability rests with the tactical naval launch crew**. Instead, **100% of the institutional and legal culpability concentrates upstream** upon:

- (i) The intelligence officers who nominated the pre-2016 coordinates;
- (ii) The DIA database managers who failed to update the No-Strike List;
- (iii) The commanders and targeting engineers who deployed the Palantir Maven Smart System without human-in-the-loop safeguards; and
- (iv) The CENTCOM Target Review Board members who validated the strike without verifying the physical ground reality.

88 bis. This allocation of liability is fully corroborated by the judicial findings of the ECtHR in **Case 19: *Isayeva, Yusupova and Bazayeva v. Russia* (ECtHR, 2005, §§ 171, 187–188, 199–200)**. In that case, domestic military authorities dismissed criminal charges against the individual pilots ("Ivanov" and "Petrov") on the ground that they had merely executed flight orders and reported to control tower "Sidorov". The European Court affirmed that State responsibility under Article 2 did not pivot upon the individual culpability of tactical aircrew who acted upon faulty command inputs, but rather upon the systemic negligence of the military command structure that planned, authorized, and controlled the mission without verifying the civilian environment. The *Isayeva, Yusupova & Bazayeva* jurisprudence thus validates the ICTY NATO Report § 85 standard: criminal and state culpability does not attach to tactical launch personnel carrying out programmed trajectory orders, but concentrates entirely upstream upon the commanding flag officers, target developers, and algorithmic validation authorities.

88 ter. This allocation of responsibility finds precedent in **Case 08: *Al-Amiriyah***, where the tactical F-117A aircrews who dropped the laser-guided ordnance were completely exonerated from targeting culpability, as they merely executed assigned flight profiles against coordinates approved by the "Checkmate" target development cell and CENTCOM leadership. In Minab, the naval launch crews aboard the USS *Abraham Lincoln* Carrier Strike Group similarly bore zero target nomination or validation authority. Under the unified *ICTY § 85 / Isayeva / Al-Amiriyah* doctrine, 100% of the criminal and institutional culpability concentrates upstream upon DIA nominators, CENTCOM Target Review Boards, Maven-Claude pipeline architects, and commanding flag officers who dismantled civilian harm oversight mechanisms.

8.2 Superior Responsibility & Systemic Command Failure

89. Under the doctrine of Command Responsibility (*In re Yamashita*; ICTY Statute Art. 7(3)), military commanders bear legal responsibility if they knew or had reason to know that subordinate targeting pipelines were operating on unverified databases, yet failed to take necessary and reasonable measures to prevent wrongful strikes.

90. Systemic command culpability is firmly established by:

- (i) The affirmative command decision to dismantle the CENTCOM Civilian Harm Mitigation and Response unit, slashing its staff from 10 members to one;
- (ii) The prioritization of algorithmic velocity (compressing verification to minutes across >1,000 targets) over mandatory positive target identification; and
- (iii) The failure of operational commanders to monitor terminal DSMAC video feeds or order a weapon abort when precision sensors revealed an active schoolyard.

8.3 State Responsibility for Internationally Wrongful Acts (ILC ARSIWA Arts. 2, 4, 8, 40, 41)

91. Beyond individual liability, the Minab school strike directly engages the **State Responsibility of the United States of America** under customary international law, as codified in the **ILC Articles on State Responsibility (ARSIWA, 2001)**:

- **Attribution (Article 4 ARSIWA):** All organs involved (US Navy, CENTCOM, DIA) are official organs of the United States State;
- **Breach (Article 2 ARSIWA):** The kinetic attack breached primary conventional and customary IHL obligations, as independently established by the United Nations Fact-Finding Mission (**UN Doc. A/HRC/63/61**);
- **Peremptory Norms (Articles 40 & 41 ARSIWA):** The prohibition against targeting child civilian sanctuaries is a peremptory norm (*jus cogens*). All States are legally obligated not to recognize the situation as lawful and to cooperate to bring the breach to an end.

↑ Back to Table of Contents

CHAPTER IX: JURISDICTIONAL MECHANISMS, INTER-STATE FORA & PROCEDURAL DUTIES

9.1 Non-Criminal State Responsibility Fora (ICJ Contentious & Advisory Jurisdictions)

92. PFPJ ry identifies the following primary state-level fora:

- **International Court of Justice (ICJ Contentious Jurisdiction):** Under Article 36 of the ICJ Statute, Iran holds standing to institute proceedings against the United States for breaches of IHL and treaty protections;
- **UN General Assembly Advisory Opinion:** Sponsoring a UNGA resolution requesting an ICJ Advisory Opinion on the legal obligations governing precision standoff kinetic strikes on educational sanctuaries during the opening hours of an armed conflict.

9.2 Extraterritorial Human Rights Jurisdiction (UN HRC GC 36 & UN CRC Transboundary Doctrine)

93. The Panel notes that international human rights law applies extraterritorially:

- **UN Human Rights Committee (ICCPR Art. 6):** Under **General Comment No. 36 (2018, § 63)**, a State's duty to protect the right to life extends to any individual whose life is directly affected by its military kinetic activities extraterritorially;
- **UN Committee on the Rights of the Child:** Under the transboundary doctrine recognized in ***Sacchi et al. v. Argentina* (2021)**, the United States exercised direct control over the weapon that killed 120 Iranian children, establishing transboundary human rights jurisdiction.

9.3 European Detachable Procedural Obligation to Investigate (*Hanan* & *Isayeva*, ECHR Art. 2)

94. Under the ECtHR Grand Chamber ruling in **Case 02: *Hanan v. Germany* [GC] (2021, §§ 132–145)**, Council of Europe Member States hold an **autonomous, detachable procedural obligation under Article 2 of the ECHR** to investigate extraterritorial kinetic strikes where a jurisdictional nexus exists and an impunity vacuum threatens international accountability.

94 bis. The precise qualitative criteria governing this procedural obligation were authoritatively codified in **Case 19: *Isayeva, Yusupova and Bazayeva v. Russia* (ECtHR, 2005, §§ 208–225)**. The Court held that to satisfy Article 2, an official investigation into lethal military strikes must be:

- **Prompt and Initiated *Ex Officio* (§§ 209, 212):** Authorities must act on their own motion without waiting for formal complaints from vulnerable victims;
- **Hierarchically and Practically Independent (§ 210):** Investigators cannot belong to the same military chain of command implicated in the strike;
- **Capable of Establishing Command Accountability (§ 211):** The inquiry must examine operations record books, mission logs, targeting sheets, and commander directives, rather than rubber-stamping self-serving witness accounts (§§ 220–222); and
- **Subject to Public Scrutiny and Victim Standing (§§ 213, 224):** Victims and their next-of-kin must be granted formal procedural status and access to proceedings.

CENTCOM's closed-door AR 15-6 investigation into the Minab strike—which withheld targeting logs, shielded senior command nominators, and excluded the families of the 156 deceased school children—violates every foundational benchmark of *Isayeva, Yusupova & Bazayeva*. This structural domestic failure activates the subsidiary procedural jurisdiction of European investigative magistrates (such as the Office of the Prosecutor General of Finland under *Rikoslaki* Chapter 1, Section 7, and the German Federal Public Prosecutor General under *VStGB* § 1) to initiate independent structural investigations (*Strukturermittlungsverfahren*).

9.4 Contingent Universal Jurisdiction Regimes (Finnish Penal Code Ch. 11 & German VStGB § 1)

95. Should state-level remediation fail, PFPJ ry preserves contingent universal jurisdiction filings:

- **Finnish Penal Code (*Rikoslaki*):** Chapter 1, Section 7, and Chapter 11, Section 6 (Aggravated War Crimes / *Törkeä sotarikos*);
- **German Code of Crimes Against International Law (*Völkerstrafgesetzbuch* — VStGB):** Section 1 (Universal Jurisdiction without territorial nexus) and mandatory investigation under § 152(2) StPO (*Strukturermittlungsverfahren*).

↑ Back to Table of Contents

CHAPTER X: DISPOSITION, REMEDIAL ORDERS & THE BELGRADE STATE REPARATIONS MODEL

10.1 Formal Declaratory Determinations of the Expert Chamber

96. FOR THE FOREGOING REASONS, this Panel renders the following formal declaratory findings:

- (1) **FINDS** that the Shajareh Tayyebeh Girls' Elementary School in Minab was on February 28, 2026, a protected civilian educational object enjoying absolute immunity under International Humanitarian Law;
- (2) **FINDS** that the kinetic strike executed by three US Navy BGM-109 Tomahawk cruise missiles was the direct result of upstream target nomination negligence, database circularity, automated AI kill-chain failure, and the institutional dismantling of civilian harm review mechanisms;
- (3) **FINDS**, in full concurrence with the United Nations Independent International Fact-Finding Mission on Iran (**UN Doc. A/HRC/63/61**), that the strike constituted an unlawful indiscriminate attack amounting to a **war crime** in breach of the Principles of Distinction, Feasible Precautions, and Proportionality;
- (4) **DETERMINES** that the acts are fully attributable to the United States of America, engaging its international State Responsibility under customary international law.

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10.2 State Reparations under Customary International Law (ARSIWA Articles 30–37 & Belgrade Precedent § 84)

97. Applying the **Belgrade Precedent (ICTY OTP § 84)**, in which the United States accepted responsibility, apologized, and paid **\$32.5 million** in direct state and victim restitution, the Panel demands that the United States execute the following remedial obligations under ILC ARSIWA Articles 30–37:

- **Cessation & Non-Repetition (Art. 30):** An immediate, binding moratorium on automated AI target nomination and prioritization platforms (including Palantir Maven Smart System and integrated LLM architectures) for strike coordinates within 500 meters of registered civilian, medical, and educational buildings, coupled with mandatory, un-compressable 72-hour human visual verification protocols and the full restoration of independent Civilian Harm Mitigation and Response oversight units;
- **Restitution (*Restitutio in Integrum*, Art. 35):** Full state-funded architectural reconstruction of the Shajareh Tayyebeh Girls' Elementary School as a modern, fortified educational facility;
- **Full Compensation (Art. 36):** Direct financial compensation to the legal heirs of all **156 deceased victims** covering wrongful death and moral damages, and the establishment of an independently managed Medical & Psychological Trust Fund covering lifelong rehabilitation for all **95+ wounded survivors**;
- **Satisfaction & Truth (Art. 37):** A formal, public acknowledgment of wrongdoing and an official state apology, accompanied by the unredacted public declassification of the CENTCOM AR 15-6 investigation records and full disclosure of the Maven-Claude targeting log for February 28, 2026.

10.3 Orders Concerning Judicial Preservation of Evidence & International Fact-Finding

98. The Panel orders:

- (i) That the verified master evidentiary archives (EXH-SAT-001 through EXH-UN-008) remain deposited in permanent, tamper-evident custody in Helsinki, Finland, under the Berkeley Protocol;
- (ii) That duplicate cryptographic archives be formally transmitted to the **President of the United Nations Human Rights Council** and the **Secretariat of the Independent International Fact-Finding Mission on the Islamic Republic of Iran** in connection with the 63rd Regular Session (UN Doc. A/HRC/63/61), and to the **International Impartial and Independent Mechanism (IIIM)**.

10.4 Contingent Prosecutorial Directions & Transmissions

99. In the event that the United States Government fails to initiate genuine domestic accountability and provide full reparations within a reasonable period, PFPJ ry shall transmit this completed judicial dossier to:

- The **Prosecutor General of Finland (*Valtakunnansyyttäjän toimisto*)** under Chapter 1, Section 12 of *Rikoslaki*;
- The **Office of the Prosecutor of the International Criminal Court** under Article 15 of the Rome Statute; and
- The **Federal Public Prosecutor General of Germany (*Generalbundesanwalt*)** under VStGB § 1.

↑ Back to Table of Contents

RENDERED AND SEALED this 12th day of September, 2026, at Helsinki, Finland.

PEOPLE FOR PEACE & JUSTICE RY (PFPJ RY)

Expert International Inquiry Panel

Helsinki, Finland — Business Identity Code: `3616815-5`

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